

DATA PROCESSING AGREEMENT (DPA) — TEMPLATE PER EDPB GUIDELINES 07/2020 § 6

This Data Processing Agreement (this “Agreement”) is entered into as of the Effective Date by and between the Customer (the “Controller”) and the Processor (the “Processor”) and forms an integral part of the Principal Agreement between the parties. Capitalised terms not defined in this Agreement have the meanings given in Regulation (EU) 2016/679 (the “General Data Protection Regulation” or “GDPR”) and in the EDPB Guidelines 07/2020 on the concepts of controller and processor.

1. Designation and Instructions. The parties acknowledge that, for the purposes of this Agreement, the Customer is the Controller and the Processor is the Processor of Personal Data, each as defined in the GDPR and as further elaborated in the EDPB Guidelines 07/2020 § 6. The Processor shall process Personal Data only on the documented instructions of the Controller, including with regard to transfers of Personal Data to a third country, unless required to do so by Union or Member State law.

2. Sub-processor Authorisation. The Processor shall not engage another processor without prior specific written authorisation of the Controller, in accordance with Article 28(2) of the GDPR and the EDPB Guidelines 07/2020 § 6. Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, a contract shall impose the same data protection obligations as set out in this Agreement, in particular providing sufficient guarantees to implement appropriate technical and organisational measures.

3. Sub-processor Flow-down. The Processor shall impose on the other processor, by way of a contract, the same data protection obligations as set out in this Agreement, in particular providing sufficient guarantees to implement appropriate technical and organisational measures. The Processor shall remain fully liable to the Controller for the performance of that other processor's obligations.

4. International Transfers. The Processor shall not transfer Personal Data to a third country unless the transfer is governed by an adequacy decision under Article 45 GDPR, the Standard Contractual Clauses set out in Commission Implementing Decision (EU) 2021/914, or another lawful transfer mechanism recognised under Chapter V GDPR, as further elaborated in the EDPB Guidelines 07/2020 on the international transfer of personal data.

5. Personal Data Breach Notification. The Processor shall notify the Controller of a Personal Data Breach without undue delay and in any event within twenty-four (24) hours of becoming aware of the Personal Data Breach, in accordance with the recommended processor inner window set out in the EDPB Guidelines 9/2022 § 3.4. The Controller shall thereupon notify the competent supervisory authority within seventy-two (72) hours as required by Article 33(1) of the GDPR.

6. Audit and Return of Personal Data. The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this Agreement, and shall allow for and contribute to audits conducted by the Controller with reasonable prior notice. Upon termination of the services relating to processing, the Processor shall, at the choice of the Controller, return all Personal Data and delete existing copies, and provide written certification of such deletion upon the Controller's request.